

Court No. - 21

Case :- WRIT - C No. - 7170 of 2012

Petitioner :- Madhukar Shukla

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Divya Swaroop Awasthi, Anup Kumar

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed, put up on 13.2.2012 as fresh.

Order Date :- 8.2.2012

P.P.

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Respondent :- State Of U.P. And Others

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Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Surendra Kumar, J.

Shri Sudeep Harkauli has filed appearance on behalf of the petitioner and Smt. Mridul Tripathi has appeared for the respondent nos. 2 and 4.

By this petition, the petitioner has prayed for quashing the impugned bills dated 21/5/2010, 14/6/2010, August, 2011, October, 2011 and 30/11/2011.

Petitioner's allegation in the writ petition is that the multiplying factor which is being used is not correct.

Learned counsel appearing for the respondents submits that the remedy of the petitioner is to file a complaint before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. There being specific statutory remedy available to the petitioner, we are of the view that the petitioner may invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005 in accordance with law and no useful purpose will be served in keeping the writ petition pending and calling for the counter affidavit. We provide, that in case the petitioner submits any complaint in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005 the same may be considered and disposed of. With the aforesaid observation, the writ petition is disposed of.

Order Date :- 13.2.2012

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